

		have both failed to pay the amounts due under the Settlement Agreement. (SSUMF, ¶ 7.) Plaintiff argues Defendants breached the terms of the Settlement Agreement by failing to timely make several of their weekly payments of \$1,155, and by failing to make a \$1,200 catch up payment despite representing that such payment would be made. (SSUMF, ¶¶ 3-5.) As a result of Defendants’ breach of the Settlement Agreement, \$112,177.50 remains due and payable. (SSUMF, ¶ 5.) Here, Plaintiff has set forth the terms of the Settlement and attached the Settlement Agreement as Ex. 1 to the Declaration of Sandra Otero. The Otero Declaration establishes Defendants have breached the agreement. (See Decl. of Otero ¶¶ 5-7, Ex. 1 and 2.) There remains an outstanding settlement balance in the amount of \$112,177.50. Plaintiff sustained its initial substantive burden to establish each element of the cause of action (CCP §437c(p)(1)), thus shifting the burden to Defendants to establish the existence of a triable issue of material fact. Defendants having failed to file any opposition failed to sustain their burden and the motion is thus GRANTED. Plaintiff to give notice and prepare a proposed order and a proposed judgment.
114	Sanchez v. Hopper, 2025-01485565	MOTION TO BE RELIEVED AS COUNSEL – DENIED WITHOUT PREJUDICE DK Law (“Moving Counsel”), moves to be relieved as Counsel of Record for Plaintiff, Fabian Yopihua Sanchez. The Motion to be Relieved as Counsel of Record is DENIED, without prejudice. The instant motion to be relieved as counsel of record originally came on for hearing on August 10, 2026. The Court ordered counsel to file a proof of service and a proposed order for the Court’s signature.

		As of September 23, 2026, Moving Counsel has not filed the proof of service and proposed order. The Court orders clerk to give notice.
115	Solouki v. Saint-Gobain Performance Plastics, 2025-01507443	MOTION TO BE RELIEVED AS COUNSEL – GRANTED Gloria Tumanyan (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Tony Solouki. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements have been satisfied. Thus, the motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
116	Unlimited Transport v. Anderson, 2025-01483349	CASE MANAGEMENT CONFERENCE – CONTINUED TO 1:30 p.m.
117	Zamora v. King, 2025-01469527	DEMURRER TO AMENDED COMPLAINT – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendant, COURY & BUEHLER PHYSICAL THERAPY, INC. (CBPT) seeks an order sustaining its demurrer to the 2nd cause of action of the first amended complaint (FAC), for negligent misrepresentation. Demurrer is sustained with 20 days leave to amend. Absent extraordinary circumstances, no further leave to amend will be granted. The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another's reliance on the fact misrepresented, (4) justifiable